

**IN THE CIRCUIT COURT OF MILLER COUNTY, ARKANSAS
CIVIL DIVISION**

DAVID BRIAN OUSLEY

PLAINTIFF

vs.

NO. _____

**BO JESTER LOGGING, LLC
AND FRANK T. MCDORE**

DEFENDANTS

PLAINTIFF'S ORIGINAL COMPLAINT

COMES NOW David Brian Ousley, Plaintiff, by and through his attorneys, and files Plaintiff's Original Complaint against Defendants Bo Jester Logging, LLC and Frank T. McDore, and in support thereof would show unto the Court as follows:

**I.
PARTIES**

1. Plaintiff David Brian Ousley is an individual and citizen of Bowie County, Texas.
2. Defendant Bo Jester Logging, LLC is a domestic corporation with its principal place of business located in Prescott, Arkansas. Said Defendant has been authorized to conduct business and does conduct business in the State of Arkansas and may be served with process through its registered agent for service Aundrea Elizabeth Jester, 1808 Hwy 24 E, Prescott, Arkansas 71857.
3. Defendant Frank T. McDore is an individual and citizen of the State of Arkansas. Said Defendant may be served with process at 109 Ouachita Road 342, Chidester, Arkansas 71726.

**II.
JURISDICTION AND VENUE**

4. A substantial portion of the conduct giving rise to this action occurred in Miller County, Arkansas, and Plaintiff's damages were sustained in Miller County, Arkansas. Jurisdiction and venue are therefore proper in this Court.
5. Defendants maintain and have maintained substantial contacts within the State of

EXHIBIT A

Arkansas. Specifically, both Defendants reside in the State of Arkansas and regularly travel within and through the State of Arkansas in the transport of goods and delivery of services within the State. This suit arises out of conduct Defendants committed in the State of Arkansas.

III. FACTUAL BACKGROUND

6. On July 6, 2021, at approximately 1:40 p.m. Plaintiff Ousley was operating his 2017 Ford pickup truck in an easterly direction on U.S. Highway 82 in Miller County, Arkansas. Plaintiff Ousley slowed to make a left turn onto Miller County 118. At the same time Defendant McDore was operating a 2020 Western Star tractor-trailer rig hauling a log trailer behind Plaintiffs vehicle, also heading East on U.S. Highway 82. Defendant McDore failed to control the speed of his rig, and collided with the back of Plaintiffs pickup truck. Plaintiffs pickup truck was knocked forward, and the tractor-trailer rig jack knifed and came to rest on the shoulder of U.S. Highway 82. Plaintiff sustained serious and permanent injuries as a result of the collision as set forth hereinafter.

7. At all material times Defendant McDore was acting within the course and scope of his employment and/or agency for Defendant Bo Jester Logging, LLC. Moreover, McDore was driving under the authority of Defendant Bo Jester Logging, LLC. Accordingly, McDore's negligence is imputed to and attributable to Defendant Bo Jester Logging, LLC.

8. Defendant McDore owed a duty of ordinary care to Plaintiff at the time of the occurrence. Defendant McDore was negligent in that he failed to use ordinary care in the following respects:

- Failure to yield the right-of-way to Plaintiff, who occupied the eastbound lane of Highway 82 while attempting to make a turn;
- Failure to maintain a proper lookout;
- Failure to keep his vehicle under control;
- Failure to maintain a safe speed; and

- Otherwise failing to use ordinary care under the circumstances then existing.

Each of these acts and omissions of negligence were a direct and proximate cause of damages to Plaintiff as set forth hereinafter.

9. Defendant Bo Jester Logging, LLC owed a duty of ordinary care to Plaintiff at the time of the occurrence. Defendant Bo Jester Logging, LLC had promulgated practices, policies, and procedures regarding safety of the motoring public as a motor carrier. These practices, policies, and procedures were formed and implemented from the corporate headquarters of Bo Jester Logging, LLC. The decisions made by Defendant Bo Jester Logging, LLC had direct cause bearing on the preventability of the crash that forms the basis of the claims before this Court, specifically including the practices, policies, and procedures and the implementation of the same regarding distracted and fatigued drivers as related to their fleets of large trucks that travel over interstate highways.

IV. DAMAGES

10. Plaintiff Ousley immediately began experiencing severe pain in his neck, back, and left shoulder blade. Plaintiff has received treatment from several healthcare providers for injuries received in the accident. Accordingly, Plaintiff sustained the following damages as a direct and proximate result of the negligence of Defendants:

- a. Reasonable expenses of necessary medical care, treatment and services received in the past and reasonably certain to be required in the future;
- b. Pain, suffering and mental anguish experienced in the past and reasonably certain to be experienced in the future;
- c. Scarring, disfigurement and visible results of injuries;
- d. Incurrence of lost wages and a loss of wage earning capacity in the future; and
- e. Damages to Plaintiffs personal property as a result of the collision.

11. The truck operated by Defendant McDore was a commercial vehicle with a gross vehicle weight in excess of 10,001 pounds involved in intrastate commerce, and thus subject to compliance with Arkansas Department of Transportation Regulations and the Federal Motor Carrier Safety Regulation (“FMCSR”) incorporated into Arkansas laws governing the operation of commercial trucks.

12. At all times herein, Defendant Bo Jester Logging, LLC negligently, carelessly, recklessly and unlawfully hired, retained, trained and supervised their agents, employees, servants and/or independent contractors who they assigned to operate, drive and control said vehicles in that, among other things, Defendant Bo Jester Logging, LLC knew or should have known that said persons were unfit for the specific tasks to be performed during the scope and course of their employment and/or agency, namely the safe operation of said vehicles.

13. At all times Defendant Bo Jester Logging, LLC owed a duty to the public and to Plaintiff not to allow an unfit driver, who is unqualified, fatigued, distracted or in excess of the maximum allowable hours of service to operate, drive and control their vehicles. Defendant Bo Jester Logging, LLC had a duty to promulgate and enforce adequate policies and procedures to prevent these unsafe acts.

14. At all times material hereto, Defendant Bo Jester Logging, LLC negligently, carelessly, recklessly and unlawfully owned, drove, entrusted, controlled and otherwise negligently operated said vehicles so as to cause a collision, thereby proximately and legally causing the injuries of Plaintiff as herein enumerated. Defendant Bo Jester Logging, LLC owed duties to exercise reasonable care in the hiring, training and supervision of employees and drivers, including Defendant McDore, in the operation of trucks to avoid causing injuries to others, and to promulgate and enforce policies, procedures and rules to those ends. These duties include the duty to comply

with the common law, the state and Federal Motor Carrier Safety Regulations, industry standards and the relevant provisions of state law and regulations.

15. Defendant Bo Jester Logging, LLC breached the duties it owed to Plaintiff by committing one or more of the following acts of negligence:

- a. Failing to properly hire safe, qualified drivers for operation of commercial trucks, including Defendant McDore;
- b. Failing to properly supervise and train drivers for operation of commercial trucks, including Defendant McDore;
- c. Negligently retaining drivers, including Defendant McDore;
- d. Negligently entrusting drivers, including Defendant McDore;
- e. Negligently allowing, encouraging and/or aiding and abetting Defendant McDore to operate a commercial intrastate tractor-trailer while fatigued or in excess of the allowable hours of operation thereof and/or while distracted;
- f. Negligently failing to have proper procedures or policies in place or promulgated for the monitoring of driver hours, including Defendant McDore, to prevent drivers from operating tractor-trailers while fatigued and/or distracted from the use of cell phones or other devices; and
- g. Otherwise failing to use reasonable care.

16. The failures and negligence of Defendant Bo Jester Logging, LLC legally caused the damages to Plaintiff as set forth hereinafter.

17. Plaintiff seeks damages in excess of \$75,000.

**V.
JURY DEMAND**

18. Plaintiff requests trial by jury on all claims for which a jury trial is available.

WHEREFORE, PREMISES CONSIDERED, Plaintiff David Brian Ousley prays for entry of judgment against Defendants Bo Jester Trucking, LLC and Frank T. McDore, jointly and severally, as follows:

- An amount in excess of any jurisdictional requirement for federal jurisdiction and diversity of citizenship;
- Reasonable expenses of necessary medical care, treatment and services received in the past and reasonably certain to be required in the future;
- Pain, suffering and mental anguish experienced in the past and reasonably certain to be experienced in the future;
- Scarring, disfigurement and visible results of injuries;
- Lost wages incurred to date and loss of wage earning capacity in the future;
- Property damages as described herein above;
- Costs of Court;
- Pre-judgment and post-judgment interest at the maximum amount allowed by law; and
- Any and all other relief to which Plaintiff may be entitled.

May 6, 2022

Respectfully submitted,

/s/ W. David Carter

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